

GENESIS PVB LLC et al v. GRAFER et al
18CV43485

ATTORNEY'S MOTION TO WITHDRAW

This case involves a failed venture to cultivate marijuana for profit. There is a related action (20CV45040), which has already been consolidated herewith. Before the Court this day is a motion by counsel for co-plaintiff Craig Borden to withdraw. This is not a request to withdraw from representing the *corporate* plaintiffs. No response from Borden is noted in the court file.

An attorney may withdraw as counsel of record if the client breaches the agreement to pay fees, insists on pursuing invalid claims or an illegal course of conduct, or when other conduct by the client renders it unreasonably difficult for the attorney to do his job, including when there is a breakdown in the attorney-client relationship. If the attorney does not have the client's consent, he or she must proceed by way of noticed motion consistent with CCP §§ 284 and 1005, CRPC 1.16 and CRC 3.1362. The motion must be verified, must utilize the designated Judicial Council forms MC-051 – MC-053, and must set forth sufficient detail to permit a trial court to discharge its duty of inquiry regarding the grounds for the motion. (See *Flake v. Neumiller & Beardslee* (2017) 9 Cal.App.5th 223, 230; *Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1134-1136; *Aceves v. Superior Court* (1996) 51 Cal.App.4th 584, 592-593.)

The declaration submitted by counsel, which must provide the factual predicate for withdrawing, is barren (see Notice Paragraph 3 and Declaration Paragraph 2). The only information regarding counsel's desire – in the entire court file – is the Joint Stipulation filed 03/10/23. Therein, counsel advises that he wishes to withdraw "because irreconcilable differences have arisen between the client and the attorney, making it unreasonably difficult to carry out the employment effectively." (Stipulation at 2:15-17.) There is no indication that the client was ever served a copy of the Joint Stipulation, and so from the perspective of the client counsel has provided no factual basis for the request. On that ground alone, the motion must be DENIED without prejudice.

In addition, a proper motion to withdraw may be denied when it is reasonably foreseeable that the client would suffer prejudice, such as when the unrepresented client would be unable to fairly respond to dispositive motions. (CRPC 1.16(d); *Mossanen v. Monfared* (2000) 77 Cal.App.4th 1402, 1409.) In this instance, since co-plaintiff Craig Borden was not part of the agreement to dismiss the 1st, 2nd, 3rd, 5th and 6th causes of action, the assumption is that he will be pursuing those additional five causes of action on his own, and further be obligated to agree to a "firm" (CRC 3.1332(a)) trial date. Since it appears that counsel intends to protect the corporate

plaintiffs' interests, but not Borden, there exists a risk of prejudice to Borden with granting the motion to withdraw *at this time*.

Motion DENIED without prejudice. The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order shall be required.

GUARANTY HOLDINGS v. RESORT AT LAKE TULLOCH et al
20CV44713

**PLAINTIFF'S MOTION FOR LEAVE TO FILE
FIRST AMENDED COMPLAINT**

This case involves a landlord-tenant dispute over the condition of the residence after being surrendered back to the homeowner. At the core of the dispute is defendants' removal of a floating boat dock. Before the Court is a motion by plaintiff for leave to file a First Amended Complaint.

Procedure

To amend a pleading already at issue, the sponsoring party is required first to seek leave of court by way of noticed motion. (CCP §473(a)(1).) Pursuant to CRC 3.1324, the moving party must: (a) specify in the moving papers by page, paragraph, and line number the allegations proposed to be added and/or deleted; and (b) include with the moving papers a copy of the proposed amended pleading and a declaration specifying (1) the effect of the amendment(s); (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request was not made earlier. From this Court's read of the papers, the motion is procedurally proper in all respects. Since defendants do not contend otherwise, this Court will move on to the substantive merits.

Substance

Motions for leave to amend a pleading are directed to the sound discretion of the court. (CCP §§ 473(a)(1) and 576.) This discretion, however, is to be exercised liberally in favor of allowing amendments. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Central Concrete Supply Co v. Bursak* (2010) 182 Cal.App.4th 1092, 1101-1102.) Courts may permit amendments at any stage in the proceedings, up to and including trial, so long there is no prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice exists where amendment would require delaying the trial, resulting in loss of critical evidence, or significant added litigation burden/costs. (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 486-488.) Prejudice is rare when the facts supporting a new cause of action first come to light during discovery. (*South Bay Building Enterprises, Inc. v. Riviera Lend-Lease, Inc.* (1999) 72 Cal.App.4th 1111, 1124-1125.) Although unexcused delays and lack of diligence may be considered, they alone are insufficient to deny leave. (See *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175; *Honig v. Financial*